Middleton, 2 Ves. 327; *St. Johns College* v. *Todington*, 1 W. Bl. 84.; s. c. 2 Burr. 200; *Attorney-General* v. *Clare College*, 3 Atk. 662; s. c. 1 Ves. 78. In the construction *of charters, too, it is a general rule, that if [*675 the objects of the charity are incorporated, as for instance, the master and fellows of a college, or the master and poor of a hospital, the visitatorial power, in the absence of any special appointment, silently vests in the founder and his heirs. But where trustees or governors are incorporated to manage the charity, the visitatorial power is deemed to belong to them in their corporate character. *Philips* v. *Bury*, 1 Ld. Raym. 5; s. c. 2 T. R. 346; *Green* v. *Rutherforth*, 1 Ves. 472; *Attorney-General* v. *Middleton*, 2 Ibid. 327; *Case of Sutton Hospital*, 10 Co. 23, 31.

When a private eleemosynary corporation is thus created, by the charter of the crown, it is subject to no other control on the part of the crown, than what is expressly or implicitly reserved by the charter itself. Unless a power be reserved for this purpose, the crown cannot, in virtue of its prerogative, without the consent of the corporation, alter or amend the charter, or divest the corporation of any of its franchises, or add to them, or add to, or diminish, the number of the trustees, or remove any of the members, or change or control the administration of the charity, or compel the corporation to receive a new charter. This is the uniform language of the authorities, and forms one of the most stubborn, and well settled doctrines of the common law.(*a*)

But an eleemosynary, like every other corporation, is subject to the general law of the land. It may forfeit its corporate franchises, by *misuser* or *non-user* *of them. It is subject to the controling authority of its [*676 legal visitor, who, unless restrained by the terms of the charter, may amend and repeal its statutes, remove its officers, correct abuses, and generally superintend the management of the trusts. Where, indeed, the visitatorial power is vested in the trustees of the charity, in virtue of their incorporation, there can be no amotion of them from their corporate capacity. But they are not, therefore, placed beyond the reach of the law. As managers of the revenues of the corporation, they are subject to the general superintending power of the court of chancery, not as itself possessing a visitatorial power, or a right to control the charity, but as possessing a general jurisdiction, in all cases of an abuse of trust, to redress grievances and suppress frauds. 2 Fonbl. Eq., B. 2, pt. 2, ch. 1, § 1, note *a*; Coop. Eq. Pl. 292; 2 Kyd on Corp. 195; *Green* v. *Rutherforth*, 1 Ves. 462; *Attorney-General* v. *Foundling Hospital*, 4 Bro. C. C. 165; s. c. 2 Ves. jr. 42; *Eden* v. *Foster*, 2 P. Wms. 325; 1 Wooddes. 476; *Attorney-General* v. *Price*, 3 Atk. 108; *Attorney-General* v. *Lock*, 3 Ibid. 164; *Attorney-General* v. *Dixie*, 13 Ves. 519; *Ex parte Kirby Ravensworth Hospital*, 15 Ibid. 304, 314; *Attorney-General* v. *Earl of Clarendon*, 17 Ibid. 491, 499; *Berkhamstead Free School*, 2 Ves. & B. 134; *Attorney-General* v. *Corporation of Carmarthen*, Cooper 30; *Mayor, &c., of Colchester* v. *Lowten*, 1 Ves. & B. 226; *Rex* v. *Watson*, 2 T. R. 199; *Attorney-General* v. *Utica Ins. Co.*, 2 Johns. Ch. 371; *Attorney-General* v. *Middleton*, 2 Ves. 327. And where a corporation is a mere trustee of a charity, a court of equity will go yet further; and though it cannot appoint or remove a corporator, it will, yet, in a case of

(*a*) See Rex *v.* Pasmore, 3 T. R. 199, and the cases there cited.